American Financial Security Life Insurance Company

152 West 57th Street, 37th Floor
New York, NY 10019

GROUP ACCIDENT AND SICKNESS HOSPITAL INDEMNITY INSURANCE
Premiums may increase upon renewal.

THIS COVERAGE PROVIDES BENEFITS DUE TO ACCIDENT AND SICKNESS. THIS CERTIFICATE EXPLAINS THE BENEFITS PROVIDED UNDER THE GROUP ACCIDENT AND SICKNESS HOSPITAL INDEMNITY INSURANCE POLICY. BENEFITS PROVIDED ARE NOT INTENDED TO COVER ALL MEDICAL EXPENSES.

CERTIFICATE OF COVERAGE

American Financial Security Life Insurance Company hereby certifies that members of the class(es) eligible for insurance are insured under the above Policy as determined by the Eligibility and Effective Date provisions. Class is defined in the Certificate Schedule.

This Certificate is evidence of insurance provided under the Policy. All benefits are paid according to the terms of the Certificate which is governed by Texas laws. This Certificate describes the essential features of the insurance coverage.
In this Certificate, the words “Named Insured” or “You” means a member of an eligible class as described on the Certificate Schedule, who is insured under the Policy and for whom premiums are remitted. The words “Covered Person” refer to any person covered under the Policy as described on the Certificate Schedule. The words “We”, “Us”, “Our” or “Company” refer to American Financial Security Life Insurance Company. “Policy” means the Group Accident and Sickness Hospital Indemnity Insurance Policy available for review by You.

Certificates issued for delivery in Texas are subject to the jurisdiction of Texas laws.

The Policy and this Certificate may be changed in whole or in part or cancelled as stated in the Policy. Such action may be taken without the consent of or notice to any Covered Person. Only an authorized officer of Ours can approve a change. The approval must be in writing and endorsed on or attached to the Policy. No other person, including an agent, may change the Policy or Certificate or waive any of its provisions. Premiums are subject to periodic changes. We have the right to change the premium We charge. If We plan to make a change, We will send the Policyholder a notice at least 60 days before We make it.

The male pronoun includes the female whenever used.

This Policy is delivered in and governed by the laws of the governing jurisdiction and to the extent applicable by the Employee Retirement Income Security Act of 1974 (ERISA) and any amendments.

NOTICE

Should You have any questions about Your coverage, please contact Your agent identified on Your Application; or You may contact Our policyholder service office at:

152 West 57th Street, 37th Floor
New York, NY 10019, (866) 258-4019

Signed for American Financial Security Life Insurance Company:

President

PLEASE READ THIS CERTIFICATE CAREFULLY.
THIS IS NOT COMPREHENSIVE MAJOR MEDICAL COVERAGE.
THIS IS NOT MEDICARE SUPPLEMENT COVERAGE.

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CERTIFICATE SCHEDULE

1. POLICY INFORMATION

   "The Policyholder": National Congress of Employers (NCE)
   Policy Effective Date: August 1, 2021
   Policy Anniversary Date: August 1, of each year

2. ELIGIBLE PERSONS: An Eligible Person is an individual who meets the requirements of one of the Covered Classes shown below:

Class 1	All members of the NCE Association who have applied and have been approved to receive indemnity benefits.
Class 2	All eligible Spouses and Dependent Children of Class 1 members for whom application and the applicable premium has been received.

Dependent Coverage: ☐ Yes ☐ No

3. COVERAGE:
4. NAMED INSURED:
5. NAMED INSURED EFFECTIVE DATE:
6. ELIGIBLE DEPENDENTS COVERED:
7. DEPENDENTS EFFECTIVE DATE:
8. COVERAGE YEAR: Begins on the Named Insured's Effective Date, continues for the next 12 consecutive months, and ends on the Named Insured's Effective Date of the next year.
9. SICKNESS BENEFIT WAITING PERIOD: 30 Days
10. COVERAGE AND BENEFIT AMOUNTS:

Accident and Sickness Indemnity Benefits
Inpatient and Outpatient

Hospital Confinement Benefit

Hospital Confinement Benefit	$100 per Day of Confinement
Maximum Benefit	31 Days per Coverage Year

Doctor's Office Visit Benefit

Doctor's Office Visit Benefit – Primary Care Physician	$50 per Day
Doctor's Office Visit Benefit – Specialty Care Physician	$50 per Day
Maximum Benefit – Primary and Specialty Care Days Combined	3 Days per Coverage Year

Emergency Room Visit Benefit

Emergency Room Benefit	$50 per Day
Maximum Benefit	1 Day per Coverage Year

Accidental Death Benefit

Accidental Death Principal Sum for Named Insured	$10,000
Accidental Death Benefit for Spouse	50% of Principal Sum for Named Insured
Accidental Death Benefit for Dependent Child(ren)	25% of Principal Sum for Named Insured
Loss Period	Loss must occur within 90 Days from the date of the Covered Accident

SECTION 1 - DEFINITIONS

Additional definitions are contained in other Certificate provisions and may be contained in any endorsement or rider.

Accident
Accident means an unintended or unforeseen bodily injury sustained by a Covered Person, wholly independent of disease, bodily infirmity, illness, infection, or any other abnormal physical condition.

Ambulatory Surgical Center
An Ambulatory Surgical Center (ASC) means a distinct entity that operates exclusively for the purpose of furnishing outpatient surgical services. The Ambulatory Surgical Center must be certified with the Center for Medicare and Medicaid Services (CMS.) An ASC is either an independent facility or is operated by a Hospital. A Hospital-operated facility must be a separately identifiable entity physically and administratively, and be financially independent and distinct from other operations of the Hospital.

Complications of Pregnancy
Health conditions requiring medical treatment before or after termination of Pregnancy. The health condition must be diagnosed as distinct from Pregnancy or as caused by it. Examples are: acute nephritis; cardiac decompensation; miscarriage; disease of the vascular, hemopoietic, nervous or endocrine systems; and similar conditions that cannot be classified as a distinct complication of pregnancy but are connected with the management of a difficult Pregnancy. Also included are: non-elective cesarean sections; terminated ectopic pregnancy; and spontaneous termination that occurs during Pregnancy in which a viable birth is impossible.

Complications of Pregnancy do NOT include: false labor; occasional spotting; hyperemesis gravidarum; preeclampsia; Doctor prescribed rest during the period of Pregnancy; or elective cesarean section.

Confined or Confinement
Confined or Confinement means the assignment to a bed as a resident inpatient in a Hospital on the advice of a Physician.

Coverage Year
Coverage Year means a consecutive 12-month period or any part of such period, as shown on the Certificate Schedule.

Covered Accident
A Covered Accident is an Accident which:

- Occurs after a Covered Person's Effective Date shown on the Certificate Schedule;
- Occurs while the Covered Person's coverage under the Policy is in force; and
- Is not excluded by name or specific description in this Certificate.

Covered Person(s)
You and Your Spouse and Your Dependent Children who are insured under the Policy.

Covered Sickness
A Covered Sickness means a Sickness which:

- Occurs after a Covered Person's Effective Date shown on the Certificate Schedule;
- Occurs while the Covered Person's coverage under the Policy is in force; and
- Is not excluded by name or specific description in this Certificate.

Day
A period of 24 hours as a unit of time, from one midnight to the next.

Diagnosis
Diagnosis is the definitive establishment of a Critical Illness condition through the use of clinical and/or laboratory findings. The diagnosis must be made by a Physician and within the scope of the Physician's license where required under the Policy.

Doctor or Physician
A Doctor or Physician means a legally qualified practitioner of the healing arts acting within the scope of his or her license.

Domestic Partner
An unmarried same or opposite sex adult not related to the Named Insured by blood or marriage with whom the Named Insured shares living space and related expenses and who has chosen to share life with the Named Insured in an intimate and committed relationship of mutual caring.

Emergency Care
Emergency services provided after the sudden onset of a medical condition manifesting itself by acute symptoms of sufficient severity, including severe pain, such that the absence of immediate medical attention could reasonably be expected to result in:

- placing the patient's health in serious jeopardy;
- serious impairment to bodily functions; or
- serious dysfunction of any bodily organ or part.

Emergency Room
Emergency Room means a portion of a Hospital where emergency diagnosis and treatment of a Sickness or Accident is provided.

Experimental/Investigational
A drug, device or medical care or treatment will be considered experimental/investigational if:

- The drug or device cannot be lawfully marketed without approval of the U.S. Food and Drug Administration and approval for marketing has not been given at the time the drug or device is furnished;
- The informed consent document utilized with the drug, device, medical care or treatment states or indicates that the drug, device, medical care or treatment is part of a clinical trial, experimental phase or investigational phase if such a consent document is required by law;
- The drug, device, medical care or treatment or the patient informed consent document utilized with the drug, device or medical care or treatment was reviewed and approved by the treating facility's Institutional Review Board or other body serving a similar function, or if federal or state law requires such review and approval; or
- Reliable Evidence shows that the drug, device or medical care or treatment is the subject of ongoing Phase I or Phase II clinical trials, is the research, experimental study or investigational arm of ongoing Phase III clinical trial, or is otherwise under study to determine the maximum tolerated dose, its toxicity, its safety, its efficacy or its efficacy as compared with a standard means of treatment or diagnosis.

Reliable Evidence means only: published reports and articles in authoritative medical and scientific literature; written protocol or protocols by the treating facility studying substantially the same drug, device or medical care or treatment; or the written informed consent used by the treating facility or other facility studying substantially the same drug, device, medical care or treatment. Benefits will be considered in accordance with the drug or device at the time it is given or when medical care is received.

Hospice
Hospice means a facility operated by a Hospital or other licensed health care institution. It is not a convalescent home; a nursing home; a Skilled Nursing Facility; or a similar institution. Its purpose is to provide an alternative environment with palliative and supportive care for terminally ill patients either directly or on a consulting basis with the patient's Physician; or another community agency, such as a visiting nurses' association.

As used in this provision, a terminally ill patient is any patient whose life expectancy, as determined by a Physician, is less than 6 months.

Hospice Care
Hospice Care means care and supplies provided or coordinated by a Hospice to terminally ill patients with a life expectancy of 6 months or less.

Hospital
A Hospital means a short-term, acute general hospital that is:

- Primarily engaged in providing, by or under continuous supervision of Physicians, to inpatients diagnostic and therapeutic services for diagnosis, treatment and care of injured or sick persons;
- Has organized departments of medicine and major surgery;
- Has a requirement that every patient must be under the care of a Physician;
- Provides 24 hour nursing care by or under the supervision of RNs;
- Duly licensed by the agency responsible for licensing such hospitals; and

- Not, other than incidentally, a place of rest, a place primarily for the treatment of tuberculosis, a place for the aged, a place for drug addicts, alcoholics, a place primarily for treatment of mental disorders or chemical dependency or a place for convalescent, custodial, educational or rehabilitory care.

Hospital Intensive Care Unit
A Hospital Intensive Care Unit means a place which:

- Is a specifically designated area of the Hospital called an Intensive Care Unit that is restricted to patients who are critically ill or injured and who require intensive, comprehensive observation and care;
- Is separate and apart from the surgical recovery room and from rooms, beds and wards customarily used for patient Confinement;
- Is permanently equipped with special lifesaving equipment for the care of the critically ill or injured;
- Is under constant and continuous observation by a specially trained nursing staff assigned exclusively to the Intensive Care Unit on a 24- hour basis; and
- Has a Physician assigned to the Intensive Care Unit on a full-time basis.

A Hospital Intensive Care Unit that meets the definition above may include Hospital units with the following names:

- Intensive Care Unit;
- Coronary Care Unit;
- Neonatal Intensive Care Unit;
- Pulmonary Care Unit;
- Burn Unit;
- Transplant Unit.

A Hospital Intensive Care Unit is not any of the following step-down units:

- A progressive care unit;
- An intermediate care unit;
- A private monitored room;
- A sub-acute Intensive Care Unit;
- An Observation Unit; or
- Any facility not meeting the definition of a Hospital Intensive Care Unit as defined in this Certificate.

Immediate Family Member
A Covered Person's Spouse, son, daughter, mother, father, sister, or brother.

Medically Necessary
Medically Necessary means a service or supply that is necessary and appropriate for the diagnosis or treatment of an injury received from a Covered Accident or Covered Sickness based on generally accepted current medical practice. A service or supply will not be considered Medically Necessary if it:

- Is provided only as a convenience to the Covered Person or provider;
- Is not appropriate treatment for the Covered Person's diagnosis or symptoms;
- Exceeds in scope, duration or intensity that level of care which is needed to provide safe, adequate and appropriate diagnosis or treatment; or
- Is Experimental/Investigational treatment.

The fact that a Physician may prescribe, authorize, or direct a service does not, of itself, make it Medically Necessary or covered by the Policy.

Named Insured
The Named Insured is the person who is a member of an eligible class and holds a certificate of coverage.

Observation Unit
An Observation Unit is a specified area within a Hospital, apart from the Emergency Room, where a patient can be monitored following outpatient surgery or treatment in the Emergency Room by a Physician; and which

- Is under the direct supervision of a Physician or registered nurse; and
- Is staffed by nurses assigned specifically to that unit; and
- Provides care seven Days per week, 24 hours per Day.

Pre-existing Condition
Pre-existing condition means a disease or physical condition, regardless of the cause of the condition, for which medical advice, diagnosis, care or treatment was recommended or received from a Physician within a 12 month period preceding the effective date of coverage of the Covered Person.

Routine follow-up care to determine whether a Covered Person has a reoccurrence of a breast cancer, if the Covered Person has been previously determined to be free of breast cancer, is not a pre-existing condition unless evidence of breast cancer is found during or as a result of the follow-up care.

Pregnancy
The period of time following the receipt by a Covered Person of a diagnosis of Pregnancy until the discharge of the Covered Person from the Hospital or other facility following the delivery of the newborn child.

Preventive Care
Preventive Care means measures taken for prevention of Sickness as opposed to treatment of Sickness or injury.

Sickness
Sickness means an illness, infection, disease, Complication of Pregnancy or any other abnormal physical condition not caused by an Accident.

Sickness Benefit Waiting Period
Sickness Benefit Waiting Period means the period of time immediately after a Covered Person's Effective Date during which benefits for Sickness are not paid. The Sickness Benefit Waiting Period is shown on the Certificate Schedule.

Skilled Nursing Facility
Skilled Nursing Facility means a facility that is operated pursuant to law and is primarily engaged in providing room and board accommodations and skilled nursing care under the supervision of a duly licensed Physician.

SECTION 2 - ELIGIBILITY AND EFFECTIVE DATE

Effective Dates of Coverage
Coverage under the Policy will start at 12:01 a.m. Standard Time at the Named Insured's place of residence on the Certificate Effective Date shown on the Certificate Schedule.

Eligibility
To be eligible to enroll in the coverage, an individual must be a member of an eligible class as defined on the Certificate Schedule.

Enrollment
An individual who is a member of an eligible class may enroll for coverage on the date the individual first becomes a member of an eligible class.

Delayed Effective Date of Coverage
The effective date of the Named Insured's coverage will be delayed if the Named Insured is not a member of an eligible class on the effective date shown on the Certificate Schedule. The coverage will be effective on the date that the Named Insured returns to status as a member of an eligible class. If this is Named Insured and Spouse coverage or family coverage, coverage on the Spouse and/or Dependent Children will be effective on the date that the Named Insured returns to status as a member of an eligible class.

Who is Covered By This Certificate
If this is Named Insured coverage as shown on the Certificate Schedule, We insure You, the Named Insured.

If this is Named Insured and Spouse coverage as shown on the Certificate Schedule, We insure You and Your Spouse.

If this is Named Insured and Children coverage as shown on the Certificate Schedule, We insure You and Your Dependent Children.

If this is Family coverage, as shown on the Certificate Schedule, We insure You, Your Spouse and Your Dependent Children.

Spouse means the person married to You or Your Domestic Partner on the Day We issue Your Certificate.

Dependent Children means Your unmarried natural children, step-children, legally adopted children including children for whom You are a party in a suit in which the adoption of the children is being sought), grandchildren if Your grandchildren are dependents of Yours for federal income tax purposes at the time the application for coverage of grandchildren is made, or children for whom You have received a court order requiring that You have financial responsibility for providing health insurance who are under 26 years of age.

Adopted children and step children are eligible for coverage on the same basis as natural children.

Coverage for the Named Insured's Newborn Children
Your newborn child is automatically covered from the moment of birth and will remain in force for 90 Days from the date of birth. Coverage for newborns is the same as for all other covered Dependent Children. You must notify Us in writing within 90 Days of birth, or before the next premium due date after the date of birth, whichever is later, and pay the required additional premium, if any, in order to have coverage for the newborn child continue beyond such 90 Days.

We will cover each newborn child from the moment of live birth. Such coverage includes:

- The necessary care and treatment of medically diagnosed congenital defects;
- Birth abnormalities;
- Prematurity.

Coverage for the Named Insured's Adopted Children
All provisions applicable to natural children also extend to adopted children or to children in which the Named Insured is a party in a suit in which the adoption of the being sought. The Named Insured must notify Us in writing within 60 Days for adoption or entry of an order and pay the required additional premium, if any, in order to have coverage for the child continue beyond such 60 Day period.

Coverage will begin from the moment of birth if the petition for adoption and application for coverage are filed within 60 Days of the date of birth.

Court Ordered Custody of Children

A child You are required to insure under a medical support order will be covered for 31 days after receipt or notice of the order. For the child to be covered beyond the initial 31-day period, You, if not already enrolled, must enroll for coverage within 31 days after Our receipt or notice of the order. Any additional premiums that are due for the coverage of You and the child must be paid within 31 days after Our receipt or notice of the order.

SECTION 3 - BENEFITS

We will pay the benefits described below. Benefits will be paid, subject to any applicable benefit limitation and the Sickness Benefit Waiting Period shown on the Certificate Schedule, when a Covered Person incurs charges for a benefit described below while the Covered Person's coverage is in force. Except for Accidental Death a Covered Person must be under a Doctor's care, and the treatment must be Medically Necessary, for injuries received in a Covered Accident, or for a Covered Sickness.

1. HOSPITAL CONFINEMENT BENEFIT

We will pay the Hospital Confinement Benefit, shown on the Certificate Schedule, if a Covered Person incurs charges for and is Confined in a Hospital due to injuries received in a Covered Accident or due to a Covered Sickness. The Confinement to a Hospital must begin on a Day that the coverage is in force.

We will pay the amount shown on the Certificate Schedule for each Day the Covered Person is confined, up to the Hospital Confinement Maximum Benefit shown on the Certificate Schedule.

We will not pay this Benefit for:

- Emergency Room visits;
- Outpatient visits; or
- Observation Unit visits.

We will not pay for any Hospital Confinement of a newborn child of a Covered Person following birth unless the child is injured or sick.

Written proof of loss should include a Hospital bill verifying the patient’s name, the dates of Hospital Confinement, the diagnosis and the charges incurred.

2. EMERGENCY ROOM VISIT BENEFIT

We will pay the Emergency Room Visit Benefit, shown on the Certificate Schedule, if a Covered Person requires medical care in an Emergency Room due to injuries received in a Covered Accident or due to a Covered Sickness. The visit must occur on a Day that the coverage is in force.

For a visit due to injuries received in a Covered Accident, the visit must occur within 72 hours after the date of the Covered Accident.

Services must be rendered by a Physician.

We will pay the Emergency Room Visit Benefit amount shown on the Certificate Schedule, for each Day the Covered Person incurs charges up to the Emergency Room Benefit Maximum Benefit, shown on the Certificate Schedule.

We will not pay the Emergency Room Visit Benefit amount if the Covered Person is Confined in a Hospital as a result of the injuries received in the Covered Accident or due to the Covered Sickness that caused the visit to the Emergency Room. We will not pay this Benefit for Observation Unit visits.

Written proof of loss should include bills verifying the patient name, the date of treatment, the diagnosis and the charges incurred.

3. DOCTOR’S OFFICE VISIT BENEFIT

We will pay the Doctor’s Office Visit Benefit, shown on the Certificate Schedule, for any Day a Covered Person requires a Doctor’s office visit due to injuries received in a Covered Accident or due to a Covered Sickness. The visit must occur on a Day that the coverage is in force.

For a visit due to injuries received in a Covered Accident, the visit must occur within 72 hours after the date of the Covered Accident.

Services must be rendered by a licensed Primary Care Physician or a Specialist acting within the scope of their license.

A Primary Care Physician includes the Covered Person’s:

- General practitioner;
- OB/GYN;

- Osteopath; and
- Internist.

A Specialist is a Physician whose practice is limited to a particular area, in a branch of medicine or surgery and who by virtue of advanced training is certified by a specialty board as being qualified to so limit his or her practice. A Primary Care Physician or Specialist cannot be an Immediate Family Member.

We will pay the Doctor's Office Visit Benefit amount shown on the Certificate Schedule for each Day the Covered Person incurs charges, up to the Doctor's Office Visit Benefit Maximum Benefit, shown on the Certificate Schedule.

Written proof of loss should include bills verifying the patient name, the date of treatment, the diagnosis and the charges incurred.

The Doctor's Office Visit Benefit will not be payable for a Doctor's visit that is payable under either the Mental Illness Benefit or the Substance Use Disorder and Dependency Benefit.

4. ACCIDENTAL DEATH BENEFIT

Accidental Death Benefit

We will pay the Accidental Death Benefit, shown on the Certificate Schedule if a Covered Person is injured as the result of a Covered Accident, and the injury causes the Covered Person to die within 90 Days after the Covered Accident.

Beneficiary

In the event of a Benefit payable due to the Named Insured's death, the Accidental Death Benefit will be paid to the Named Insured's beneficiary. The beneficiary is the person the Named Insured designated in the enrollment form as the beneficiary, unless it was changed at a later date. If a beneficiary was not named or if the person named is not living at the Named Insured's death, the Accidental Death benefit due will be paid in this order to:

The Named Insured's Spouse; or children; or parents; or brothers and sisters; or estate. In the event of a Benefit payable due to the death of a Spouse or Dependent Child, the Accidental Death Benefit will be paid to the Named Insured, if living, otherwise to the estate of the Spouse or Dependent Child.

If Benefits are payable to a Covered Person's estate, We may pay benefits up to $1,000 to someone related to the Covered Person by blood or marriage whom We feel is fairly entitled to them. If We do this, We will have no responsibility for this payment if We made it in good faith.

Change of Beneficiary

The Named Insured can ask Us to change their beneficiary at any time. The Named Insured should notify Us, and We will send him the form to complete. The request must be witnessed by someone other than his present beneficiary or his proposed beneficiary and returned to Us. The change must be approved by Us. If approved, it will go into effect the Day he signed the request. The change will not have a bearing on any payment We make before We receive it.

SECTION 4 – LIMITATIONS AND EXCLUSIONS

We will not pay a Benefit for any Day in which treatment, services or supplies are:

- Not Medically Necessary;
- Not prescribed by a Doctor;
- Experimental/Investigational;
- Received without charge or legal obligation to pay; or
- Provided by Your or an Immediate Family Member except when provided by a dentist.

Additional Limitations and Exclusions

Except as specifically provided for in the Policy or any attached Riders, We will not pay a Benefit for Sickness or injuries that are caused by:

Dental Procedures – Dental care or treatment except for such care or treatment due to accidental injury to Sound Natural Teeth within 12 months of a Covered Accident and except for dental care or treatment necessary due to congenital disease or anomaly.

Sound Natural Teeth means teeth that are free of active or chronic clinical decay, have at least 50% bone support and are functional in the arch.

Elective Procedures and Cosmetic Surgery – Cosmetic surgery, except that cosmetic surgery shall not include reconstructive surgery incidental to or following surgery resulting from trauma, infection or other disease of the involved part and reconstructive surgery because of congenital disease or anomaly of a covered Dependent Child which has resulted in a functional defect.

Felony or Illegal Occupation – Commission of or attempt to commit a felony or to which a contributing cause was the Covered Person's being engaged in an illegal occupation.

Manipulations of the Musculoskeletal System – Care in connection with the detection and correction by manual or mechanical means of structural imbalance, distortion or subluxation in the human body for purposes of removing nerve interference and the effects thereof, where such interference is the result of or related to distortion, misalignment or subluxation or of or in the vertebral column.

Pre-existing Condition Limitation
There is no coverage for a Pre-Existing Condition for a continuous period of 12 months following the effective date of a Covered Person's coverage under the Policy.

This limitation does not apply to:

- genetic information in the absence of a diagnosis of the condition related to such information;
- children who are party to a suit in which the Named Insured seeks to adopt the child; and
- a newborn child who is enrolled for coverage hereunder within 31 days after birth; nor to a child who is adopted before attaining 26 years of age.

Pregnancy

Suicide or Injuries Which a Covered Person Intentionally Does to Himself - suicide, attempted suicide or intentionally self-inflicted injury; whether sane or insane.

Voluntary Abortion – except where the Covered Person has a life-threatening condition.

War or Act of War, Riot, Insurrection, Service in Armed Forces. War or act of war (whether declared or undeclared; participation in a riot or insurrection; service in the Armed Forces or units auxiliary thereto. Losses as a result of acts of terrorism committed by individuals or groups will not be excluded from coverage unless the Covered Person who suffered the loss committed the act of terrorism.

Work-related Injury or Sickness. Work-related injury or Sickness, whether or not benefits are payable under any state or federal Workers' Compensation, employer's liability or occupational disease law or similar law.

SECTION 5 - TERMINATION

Termination of a Named Insured's Coverage
The coverage on a Named Insured will terminate on the earliest of the following dates:

- The date the Policy terminates or is discontinued;
- Midnight on the last Day of the grace period;
- 90 Days after the date written notice was provided that the Named Insured is no longer in an eligible class;
- The date the Named Insured's class is no longer included for insurance; or
- On the date the Named Insured asks Us to end their coverage.

When Coverage Ends on the Named Insured's Spouse and/or Dependents
If this is Named Insured and Spouse coverage or two-parent family coverage, coverage on the Named Insured's Spouse will end:

- If the Policy terminates or is discontinued;
- If the premiums are not paid for the Named Insured's Spouse when they are due subject to the grace period;
- 90 Days after the date written notice was provided that the Spouse is no longer in an eligible class;
- On the date the Named Insured asks Us to end their Spouse's coverage;
- On the date the Named Insured dies; or
- On the date the next premium is due after the Named Insured divorces their Spouse.

If this is family coverage, coverage on the Named Insured's dependents will end:

- If the Policy terminates;
- If the premium is not paid for the Named Insured's dependents when it is due subject to the grace period;
- On the date the Named Insured asks Us to end their Dependent coverage; or
- On the date the Named Insured dies.

Coverage of an unmarried Dependent Child who is incapable of sustaining employment by reason of intellectual and developmental disability or physical disability, who became so incapacitated prior to the attainment of 26 years of age and who is chiefly dependent upon the Named Insured for support and maintenance will continue so long as the coverage of the Named Insured remains in force and so long as the Dependent Child remains in such condition. At Our request and expense, the Named Insured must furnish proof of the incapacity or dependency to Us. After the first two years, We cannot require proof more than once each year. If the incapacity or dependency is thereafter removed or terminated, the Named Insured must notify Us.

Coverage will end on each Dependent Child when they no longer qualify as a Dependent as defined in the Certificate. It is the Named Insured's responsibility to notify Us within 31 days if any Dependent no longer qualifies as an eligible Dependent. If this is family coverage and all of the dependents no longer qualify as eligible dependents and We are not notified, the extent of Our liability will be to refund premium for the time period for which they did not qualify.

Extension of Benefits
If a Covered Person is Totally Disabled as a result of Covered Sickness, or injuries resulting from a Covered Accident, on the date his coverage terminates, Benefits will continue to be payable for loss arising from that Covered Sickness or injury, subject to the terms and limitations of the Certificate.

The Extension of Benefits terminates on the earliest of the following:

- The end of treatment for the Covered Sickness or injury that caused the Total Disability; or
- The end of the 90 day period following the date coverage terminated.

The Extension of Benefits provision will apply unless coverage provided for the Covered Person under this Certificate is being discontinued and replaced with coverage that:

- is provided by a succeeding carrier; and
- provides a level of benefits that is at least substantially equal to the level of benefits provided under this Certificate.

Total Disability/Totally Disabled means:

- with respect to the Named Insured, the complete inability of that person to perform all of the substantial and material duties and functions of the person's occupation and any other gainful occupation in which the person earns substantially the same compensation earned before the disability; and
- other Covered Person, Confinement in a Hospital.

SECTION 6 - PREMIUMS

When and Where to Pay Premiums
The premiums for the coverage must be paid to Us at Our administrative office when they are due.

The premium due dates are based on:
- The Certificate Effective Date shown on the Certificate Schedule; and
- The premium frequency.

The *premium frequency* is how often the premiums are due.

Grace Period (If Premiums Are Not Paid When Due)
After the first premium, if the premium is not paid when it is due, it can be paid during the next 31 Days. These 31 Days are called the grace period. If the premium is not paid before the grace period ends, the coverage provided by the Policy will terminate at midnight on the last Day of the grace period.

Our Right to Change Premiums
We have the right to change the premium We charge. If We plan to make a change, We will send You a notice at least 60 Days before We make it.

We may change premium rates at any time for reasons which affect the risk assumed, including the reasons shown below:
- A change occurs in the plan design; or
- A new law or a change in any existing law is enacted which applies to the Policy.

SECTION 7 - GENERAL PROVISIONS

Entire Contract; Changes
The entire contract consists of:

- The Policy, the Certificate including the Certificate Schedule;
- The application(s), if any; and
- Any attached riders or endorsements.

Any changes made to the Policy must be attached in writing and signed by one of Our executive officers. No agent or anyone else can change the coverage provided by the Policy or waive any of its provisions.

Incontestability
Any statement made by You will be considered a representation and not a warranty. We will not use such a statement to void insurance, reduce benefits or defend a claim unless the following requirements are met:

- the statement is in a form that is in writing;
- You have signed the form; and
- a copy of the form has been given to You, Your personal representative or Your beneficiary.

We will not use Your statements which relate to insurability to contest this insurance after it has been in force for 2 years, unless the statement is fraudulent.

Misstatement of Age and Sex
If the age or sex of a Covered Person has been misstated, We will make an equitable adjustment of the premium. Such premium will be the difference between the premiums paid and the premiums which would have been paid at the Covered Person's true age or sex, whichever applies. If coverage would not have been issued, We will refund the premiums paid for such insurance.

Conformity with State Statutes
If any provision of the Policy is contrary to any law to which it is subject, such provision is hereby amended to conform to the minimum requirements of such law.

SECTION 8 - CLAIM PROVISIONS

Notice of Claim
Written notice of claim must be given to Us within 60 Days after the occurrence of any loss covered by the Policy, or as soon thereafter as it is reasonably possible. Notice given by or on behalf of a Covered Person to Us, with information sufficient to identify the Covered Person, shall be deemed notice to Us.

Claim Forms
Upon receipt of a notice of claim, We will furnish the claimant such forms that are usually furnished by Us for filing proof of loss. If such forms are not furnished within 15 Days after the giving of such notice, the claimant shall be deemed to have complied with the requirements of the Policy as to proof of loss upon submitting, within the time fixed in the Policy for filing proofs of loss, written proof covering the occurrence, the character and the extent of the loss for which claim is made.

Proof of Loss
The Named Insured must give Us written proof of loss within 90 Days after the covered loss begins. If he is not able to give Us written proof of loss within 90 Days, it will not have a bearing on this claim if proof is given to Us as soon as it is reasonably possible. In any event, proof must be given within one (1) year after it is due unless the Named Insured is legally incapable of doing so.

Payment of Claim
Benefits will be paid to the Named Insured, the Named Insured's assignee or to the designated beneficiary on record. If no named beneficiary is on record with Us all or any part of the benefits owed will be paid to the estate. In lieu of paying benefits to the estate We may, at Our option, pay benefits, up to an amount not exceeding $1,000, to any one or more of the following surviving relatives:

- Spouse;
- Mother;
- Father;
- Child or children; and
- Brothers or sisters.

We will pay to the Texas Department of Health and Human Services Commission, any amounts which would have been paid to the Named Insured but were paid by the Department through the Medical Assistance Act of 1967, as amended.

Benefits payable on behalf of any covered Dependent Children will be paid to the Texas Department of Health and Human Services Commission upon written notification if:

- the Named Insured has possession or access to the child by court order or is not entitled to possession or access to the child and is required by court order to pay child support;
- the Texas Department of Health and Human Services Commission is paying benefits on behalf of the child under Chapter 31 and 32 of the Texas Human Resources Code; and
- notification is given in writing attached to the first submitted claim that such claim reimbursement should be paid to the Texas Department of Health and Human Services Commission.

For any covered Dependent Children, reimbursement may be made on behalf of that child to a person who is named managing conservator by administrative or court order issued by a court of competent jurisdiction of any state. The managing conservator must submit to Us:

- a proper claim form;
- written notice naming the conservator; and
- certified copy of the administrative or court order or other evidence allowed by rule of the State Department of Insurance. This paragraph will not apply when a valid assignment of benefits has been exercised or to claims submitted by the Named Insured where the Named Insured has paid any portion of a medical bill that would be covered under the terms of the Policy.

Time of Payment of Claim
Benefits for loss covered will be paid as soon as reasonably possible but not later than 60 days once We receive proper written Proof of Loss.

Physical Examinations and Autopsy
We may require that a Covered Person be examined by a Physician of Our choice at Our expense as often as it is reasonably necessary while his claim is pending. We have the right and opportunity to make an autopsy in the case of death where it is not prohibited by law.

Legal Action
No action at law or in equity may be brought to recover under the Policy less than 60 days after written or authorized electronic proof of loss has been furnished as required by the Policy. No such action may be brought more than three years after the time such written proof of loss must be furnished.